

FORMAL REGULATORY COMPLAINT: PROFESSIONAL MISCONDUCT

SOUTH AFRICAN NURSING COUNCIL (SANC)

COMPLAINANT:

WILBUR WILLIAM MATTHEE

SANC Registration Number: 1583 1886

Contact Number: 063 378 8783

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Address: 15 Bellevue Street, Voorbrug, Cape Town, 7100

RESPONDENTS:

1. MARY-ANN JONES

SANC Registration Number: (Unknown – To be verified)

Position: Team Leader

Employer: Medscheme (Division of AfroCentric Health)

2. MAPULE MASHELE

SANC Registration Number: (Unknown – To be verified)

Position: Senior Manager

Employer: Medscheme (Division of AfroCentric Health)

DATE OF SUBMISSION: 10 February 2026

REFERENCE: SANC/MEDSCHEME/MATTHEE/20260105

1. INTRODUCTION AND PURPOSE

I, Wilbur William Matthee, a Registered Nurse Specialist (R425) and Health Services Manager, hereby submit this formal complaint of professional misconduct against two registered nurses, Mary-Ann Jones and Mapule Mashele, in terms of the Nursing Act, 2005 (Act No. 33 of 2005) and the SANC Code of Ethics for Nursing Practitioners in South Africa.

This complaint details serious, repeated, and systemic breaches of nursing ethics and statutory duties that extend beyond an employment dispute and strike at the core of professional nursing practice: patient safety, dignity, confidentiality, and the duty of care. The Respondents, both in positions of authority, engaged in conduct that compromised the welfare of a vulnerable individual (the Complainant, a nurse under their supervision) and suppressed disclosures of systemic risks to patient safety.

2. SUMMARY OF KEY ALLEGATIONS

The Respondents are accused of the following acts of professional misconduct:

1. Unprofessional Conduct and Discrimination: Intentional misgendering and public humiliation of the Complainant.
2. Breach of Confidentiality and Non-Maleficence: Misuse of private psychiatric information to inflict financial and psychological harm.
3. Neglect of Duty of Care and Abandonment: Failure to provide care and support during a psychiatric crisis, and issuance of punitive instructions exacerbating medical vulnerability.
4. Retaliation Against a Whistleblower: Punitive administrative actions following protected disclosures of patient safety risks and ethical breaches.
5. Suppression of Protected Disclosures and Governance Failure: Failure to act on, and active suppression of, formal reports of systemic patient harm and discrimination.

6. Unethical Leadership and Institutional Bad Faith: Delegation of a serious complaint back to the perpetrator and refusal to provide a safe, impartial grievance process.

3. DETAILED CHRONOLOGY OF MISCONDUCT WITH SANC CODE VIOLATIONS

3.1. DISCRIMINATION AND HARASSMENT – “WILMA” INCIDENT (23 SEPTEMBER 2025)

- Incident: In a team-wide Microsoft Teams chat, Ms. Mary-Ann Jones intentionally referred to the Complainant as “Wilma,” immediately after presenting a filtering system which the team found as great to improve productivity. This was not a clerical error but a deliberate act of misgendering and occupational detriment. The Respondent’s conduct on 25 September was not merely an assault on my dignity; it was an assault on clinical efficiency. The misgendering incident was immediately followed by a directive to cease a successful 'filtering system' I had implemented to improve accuracy. The instruction 'NO FILTERING' (highlighted in red) serves as documented proof that the Respondents prioritized the systematic deconstruction of my professional work over patient safety and team cohesion.
- SANC Breach: Violation of Clause 2.1 (Respect for human dignity) and Clause 2.3 (Non-discrimination) of the SANC Code of Ethics. This constitutes disgraceful, improper, or unprofessional conduct under Section 56(1)(a) of the Nursing Act.
- Evidence: Annexure D1 (Teams Chat Transcript).

3.2. MISUSE OF CONFIDENTIAL MEDICAL INFORMATION & CREATION OF HARM (MAY – JULY 2025)

- Incident: Both Respondents were in possession of the Complainant’s formal psychiatric diagnosis (Severe Major Depressive Disorder & PTSD from Dr.

Jacques Malan). Instead of providing reasonable accommodation as required by law and ethics, they used this knowledge to:

- Place him on punitive unpaid leave.
- Authorize an unlawful salary deduction of 40.47% (R14,811.77) in July 2025 while he was on approved psychiatric leave.
- This action directly caused a humanitarian crisis, including inability to afford rent (leading to eviction) and chronic medication.
- SANC Breach: Violation of Clause 4 (Confidentiality) and the fundamental ethical principle of Non-Maleficence (“First, do no harm”). Knowingly creating conditions that destroy a person’s health and livelihood is a gross ethical failure.
- Evidence: Annexure B1 (Psychiatric Report), Annexure E2 (July 2025 Payslip), Annexure I1 (Eviction Notice).

3.3. NEGLECT OF DUTY OF CARE AND ABANDONMENT (21-23 MAY 2025)

- Incident: On 21 May 2025, during a documented psychiatric crisis at the workplace, Ms. Jones instructed the Complainant to “leave the premises immediately” to obtain care, rather than ensuring his safe transport or providing immediate support. This was followed by the “Oracle Instruction” to load unpaid leave.
- SANC Breach: Violation of Clause 3.1 (Duty to provide care). A nurse in a leadership position has a duty to ensure the safety of all individuals in the care environment. This conduct meets the definition of abandonment and failure to act in an emergency.
- Evidence: Annexure E9 (“Oracle Instruction” Email), Annexure B1 (Medical Report confirming admission date of 23 May 2025).

3.4. RETALIATION FOR PROTECTED DISCLOSURES (SEPTEMBER – OCTOBER 2025)

- Incident: After the Complainant escalated a critical patient safety risk (the Gexus/DMS system failure causing false “non-adherence” letters to be sent to elderly patients), Ms. Jones:
- Loaded a retaliatory double unpaid leave entry on 29 September 2025.
- Initiated a disciplinary process for “insubordination” because the Complainant refused to mislead a 75-year-old patient about the system error.
- In a recorded meeting on 31 October 2025, Ms. Jones admitted retaliation, stating: “You made a case of harassment against me so I can make a case of harassment against you.”
- SANC Breach: Violation of Clause 6 (Integrity and Professional Responsibility) and Clause 7 (Social Justice and Advocacy). Retaliating against a nurse for upholding patient safety and ethical truthfulness is a severe corruption of professional duty.
- Evidence: Annexure C3 (Gexus/DMS Email), Annexure E6 (Double Unpaid Leave Entry), Annexure F4 (Meeting Transcript containing admission).

3.5. FAILURE TO ACT & SUPPRESSION OF DISCLOSURES (OCTOBER – DECEMBER 2025)

- Incident: Ms. Mapule Mashele, as Senior Manager:
 - Dismissed the formal complaint of gender discrimination (the “Wilma” incident) as a “typo” in writing.

- Failed to act on a formal “Priority 1 Material Risk Report” submitted to the Board regarding systemic governance failures and patient safety risks.
- Participated in the “de-escalation” of a protected disclosure back to the very department under investigation on 5 December 2025, denying the Complainant a safe and impartial process.
- SANC Breach: Violation of Clause 7 (Advocacy), Clause 8 (Leadership and Accountability), and Rule 15(1)(h) of the SANC Rules (failure to report a danger to the public). A nurse in management has an enhanced duty to act on risks and protect those who report them.
- Evidence: Annexure D2 (Email dismissing complaint as “typo”), Annexure C4 (P1 Risk Report), Annexure G0 (De-escalation Email).

4. SPECIFIC SANC RULES AND ACTS BREACHED

The conduct described above contravenes, inter alia, the following provisions:

- SANC Code of Ethics (2013): Clauses 2.1, 2.3, 3.1, 4, 6, 7, and 8.
- Nursing Act, 2005:
 - Section 56(1)(a): “Disgraceful, improper or unprofessional conduct.”
 - Section 56(1)(c): “Neglecting to comply with the provisions of this Act.”
 - Section 56(1)(d): “Acting in a manner contrary to the dignity of the nursing profession.”
- SANC Rules Setting Out Acts or Omissions (GN R387 of 1985 as amended):
 - Rule 15(1)(c): “Abandoning or neglecting a patient in need of immediate nursing care.”
 - Rule 15(1)(h): “Failure to report to the relevant authority any danger to the public in connection with the practice of his/her profession.”

- Rule 15(1)(k): “Improper or disgraceful conduct.”
- Rule 15(1)(m): “Violation of the ethical rules of the profession.”

5. REQUEST FOR ACTION

In light of the gravity and documented evidence of these breaches, I respectfully request that the SANC:

1. Acknowledge receipt of this formal complaint and register it against the professional profiles of Mary-Ann Jones and Mapule Mashele.
2. Initiate a formal investigation by the Preliminary Investigating Committee (PIC) in terms of Section 51 of the Nursing Act.
3. Summon the Respondents to provide explanations for their conduct.
4. Should the investigation find merit, refer the matter to the Professional Conduct Committee for a formal disciplinary hearing.
5. Impose appropriate sanctions which may include, but are not limited to:
 - Mandatory remedial ethics training.
 - A suspended or conditional practice certificate.
 - A fine.
 - In cases of gross misconduct, removal from the register to protect the public and the integrity of the profession.
6. Notify the employer, Medscheme (AfroCentric Health), of the investigation and its outcome.

6. LIST OF KEY ANNEXURES ATTACHED

1. Annexure B1: Psychiatric Report – Dr. Jacques Malan (15 May 2025)
2. Annexure C3: Email – Disclosure of Gexus/DMS System Failure & Patient Risk (23 Oct 2025)
3. Annexure C4: P1 Material Risk Report to Board (9 Dec 2025)
4. Annexure D1: Teams Chat – “Wilma” Misgendering Incident (23 Sep 2025)
5. Annexure D2: Email – Discrimination Dismissed as “Typo” by Ms. Mashele (1 Oct 2025)
6. Annexure E2: July 2025 Payslip – Showing 40.47% Unlawful Deduction
7. Annexure E3: Teams Chat – Ms. Jones acknowledges deduction exceeds 25% policy limit (24 Jul 2025)
8. Annexure E6: Payroll Record – Retaliatory Double Unpaid Leave Entry (29 Sep 2025)
9. Annexure E9: Email – “Oracle Instruction” to Load Unpaid Leave During Crisis (21 May 2025)
10. Annexure F4: Transcript – 31 Oct 2025 Meeting containing admission of retaliation by Ms. Jones
11. Annexure G0: Email – Executive “De-escalation” of Protected Disclosure (5 Dec 2025)
12. Annexure I1: Eviction Notice (Nov 2025)

A full Sworn Founding Affidavit (Labour Court Case No: [To be assigned]) containing the complete evidentiary record is available upon request.

7. DEPONENT'S VERIFICATION

I, the undersigned, verify that the facts contained in this complaint are true and correct to the best of my knowledge and belief. I understand that providing false information may constitute perjury.

SIGNATURE OF COMPLAINANT: _____

WILBUR WILLIAM MATTHEE

DATE: 10 February 2026

COMMISSIONER OF OATHS:

I certify that the deponent has acknowledged that he knows and understands the contents of this affidavit, which was signed and sworn to before me on this day.

FULL NAME: _____

BUSINESS ADDRESS: _____

CONTACT NUMBER: _____

COMMISSION EXPIRY DATE: _____

STAMP & SIGNATURE: _____

DATE: 10 February 2026